Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1338
Claimant:	Brian Hernandez
Adjuster:	Chelsea Hebert

15 Apr 2023
Claim received for a side impact at an intersection involving the insured vehicle and a second vehicle. The claimant is represented by counsel, and all further contact will be routed through the attorney's office.

24 Apr 2023
Confirmed that the driver of the insured vheicle is named on the policy and that coverage was in force at the time of the loss. Nothing in the file suggests the damage predates the policy start.

2 May 2023
Obtained the police report, which places the claimant inside the vehicle at the time of impact. Witness statements and scene photos are consistent with the account given at first notice.

25 Jun 2023
Spoke with the other driver, who described the collision the same way the claimant did. Their account matches the sequence recorded by the responding officer.

21 Aug 2023
Reviewed the vehicle file and found no prior damage to the vehicle on record. The repair estimate covers the visible side panels and door structure from this impact.

7 Sep 2023
Claimant reports neck and upper back pain consistent with whiplash following the collision. The reported symptoms are a plausible result of a crash of this type.

15 Oct 2023
Medical records show treatment followed a usual course, with symptoms easing steadily as the patient improved. No prior injury to the same body area appears in the records provided.

22 Oct 2023
Called counsel to request the complete treatment history and billing. Counsel agreed to provide the records within the agreed timeframe.

8 Nov 2023
Spoke with the claimant again, who gave the same account of the accident as in earlier conversations, with no changes to the sequence or the injuries described.

11 Nov 2023
Reviewed the repair photos against the damage pattern. It is not yet clear whteher all of the damage came from this impact, so the independent appraiser has been asked to check the lower body panels.

22 Nov 2023
Appraiser review requested and medical records under review. Claim remains open pending the appraisal findings and final treatment billing.

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Recorded Statement

Claim number:	C-1338
Statement of:	Brian Hernandez
Taken by:	Chelsea Hebert
Date:	7 Apr 2023

Q: Thank you for agreeing to give this recorded statement. Please state your full name for the record.

A: I'd rather just be identified as the driver of the vehicle, if that's alright.

Q: That works. Can you tell me where you were when the collision happened?

A: I was going through an intersection in Conroe, Texas, heading east on the main road. The light had been green for me as I approached.

Q: What happened as you entered the intersection?

A: A car coming from the cross street on my right pushed through and hit the side of my vehicle, right behind the front door. I had just started to move through when it happened.

Q: Did you have any time to react before the impact?

A: Not really. I saw the other car at the last second and tried to brake, but there wasn't enough room.

Q: Were you injured?

A: Yes. My neck snapped forward and then back, and my head hit the side window. I felt stiffness right away, and by the next morning the pain had spread into my shoulders and upper back.

Q: Have you sought medical treatment?

A: I went to an urgent care clinic that same afternoon and I've been seeing a physical therapist twice a week since then. The doctor said I have soft tissue damage in my neck.

Q: Do you have any pre-existing neck or back problems?

A: No, nothing that had required treatment before this. I was working full time and driving daily without restriction.

Q: Is there anything else you'd like to add?

A: Only that I'm still having headaches and I've had to limit how long I can sit at my desk. I'd like the claim to reflect that.

Q: Thank you. That concludes the statement.